

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC.

v.

BAL CONTAINER LINE CO., LIMITED

**DECLARATION OF J. ZACHERY MORRIS IN SUPPORT OF
COMPLAINANT’S THIRD MOTION TO COMPEL DISCOVERY FROM
RESPONDENT BAL CONTAINER LINE CO., LIMITED**

I, J. Zachery Morris, hereby declare as follows:

1. I am Counsel at Huth Reynolds LLP, Counsel for Complainant 20230930-DK-Butterfly-1, Inc. (“Complainant”) in the above-captioned litigation matter.
2. I am a member in good standing of the Bars of the District of Columbia and New York and have filed an appearance in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. I submit this Declaration in support of Complainant’s Third Motion to Compel Discovery from Respondent (the “Motion”). This Declaration is submitted simultaneously with the Motion.
5. On November 26, 2025, I served Complainant’s notice of corporate deposition (the “Notice”) pursuant to 46 C.F.R. § 502.143(b)(6) on Respondent. A true and correct copy of that document is included as Exhibit A.

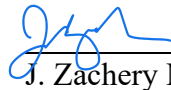
6. On December 3, 2025, Respondent sent Complainant its objections to Complainant's Notice. A true and correct copy of that document is included as Exhibit B.
7. On December 4, 2025, Respondent emailed Complainant to amend its corporate designees for testimony on proposed modified subparts of Topic 3 in Complainant's Notice. A true and correct copy of that document is included as Exhibit C.
8. On December 4, 2025, Complainant emailed Respondent regarding deposition logistics and to request a meet and confer regarding the corporate deposition topics set forth in Complainant's Notice. A true and correct copy of that document is included as Exhibit D.
9. On December 4, 2025, Respondent emailed Complainant regarding Respondent's availability to meet and confer beginning December 9, 2025. A true and correct copy of that document is included as Exhibit E.
10. On December 5, 2025, Complainant emailed Respondent flagging that waiting to meet and confer until December 9 would require the parties to begin corporate depositions without having met and conferred on the topics for examination. A true and correct copy of that document is included as Exhibit F.
11. On December 6, 2025, Respondent emailed Complainant to offer additional availability to meet and confer the evening of Sunday, December 7 Eastern Standard Time. A true and correct copy of that document is included as Exhibit G.
12. On December 7, 2025, Complainant emailed Respondent agreeing to meet and confer during the window of time provided by Respondent. A true and correct copy of that document is included as Exhibit H.

13. On December 7, 2025, Complainant emailed Respondent after Respondent did not respond to phone calls during the scheduled meet and confer time. A true and correct copy of that document is included as Exhibit I.
14. On December 8, 2025, Complainant followed up to ask again when Respondent could meet and confer. A true and correct copy of that document is included as Exhibit J.
15. On December 8, 2025, Respondent subsequently responded and asked for Complainant's availability in the coming 24 hours. A true and correct copy of that document is included as Exhibit K.
16. On December 8, 2025, Complainant and Respondent emailed one another regarding meeting and conferring, with Complainant offering another window of availability, and Respondent indicating that that window would be too late in the evening in Hong Kong and requesting that the parties proceed to confer via email. A true and correct copy of that correspondence is included as Exhibit L.
17. On December 9, 2025, Complainant emailed Respondent to follow up regarding Respondent's objections to proposed corporate deposition topics in Complainant's Notice. A true and correct copy of that document is included as Exhibit M.
18. On December 9, 2025, the parties exchanged several emails regarding meeting and conferring regarding the topics in Complainant's Notice and the scheduling of Mr. Terry Ye's corporate deposition. A true and correct copy of that correspondence is included as Exhibit N.
19. On December 9, 2025, the parties agreed via email to meet and confer the morning of December 10, 2025, Eastern Standard Time. A true and correct copy of that document is included as Exhibit O.

20. On December 10, 2025, following a meet and confer via telephone, the parties continued to negotiate via email. A true and correct copy of that correspondence is included as Exhibit P.

21. On December 18, 2025, Complainant reached out to confirm that Respondent had not changed its position regarding Topics 3, 4, 5, 6, and 8. Respondent did not respond prior to the filing of this Motion. A true and correct copy of that document is included as Exhibit Q.

To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct. Executed on December 19, 2025.



J. Zachery Morris